

70. Prohibition of undue preference.- A railway administration shall not make or give any undue or unreasonable preference or advantage to , or in favour of, any particular person or any particular description of traffic in the carriage of goods.

COMMENT

Section 70 prohibits a railway administration from giving undue or unreasonable preference in favour or any particular person or traffic.

71. Power to give direction in regard to carriage of certain goods.- (1) The Central Government may, if it is of the opinion that it is necessary in the public interest so to do, by general or special order, direct any railway administration.-

- (a) to give special facilities for, or preference to, the carriage of such goods or class of goods consigned by or to the Central Government of any State or of such other goods or class of goods;
- (b) to carry any goods or class of goods by such route or routes and at such rates;
- (c) to restrict or refuse acceptance of such goods or class of goods at or to such station for carriage,

as may be specified in the order.

(2) Any order made under sub-section (1) shall cease to have effect after the expiration of a period of one year from the date of such order, but may, by a like order, be renewed from time to time for such period not exceeding one year at a time as may be specified in the order.

(3) Notwithstanding anything contained in this Act, every railway administration shall be bound to comply with any order given under sub-section (1) and any action taken by a railway administration in pursuance of any such order shall not be deemed to be a contravention of Sec. 70.

COMMENT

Section 71, sub-clause (1) empowers the Central Government to give directions to the railway administration with regard to –

- (a) Special facilities for the carriage of goods consigned by to the Central Government or the State Government or any other goods;
- (b) The route or the rate at which any goods may be carried; and

(c) To restrict or refuse acceptance of any goods at or to any station.

Sub-clause (2) provides that an order under sub-clause (1) shall be in force for one year and may be renewed for a period not exceeding one year at a time.

72. Maximum carrying capacity for wagons and trucks.- (1) The gross weight of every wagon or truck bearing on the axles when the wagon or truck is loaded to its maximum carrying capacity shall not exceed such limit as may be fixed by the Central Government for the class of axle under the wagon or truck.

(2) Subject to the limit fixed under sub-section 91) every railway administration shall determine the normal carrying capacity for every wagon or truck in its possession and shall exhibit in words and figures the normal carrying capacity so determined in a conspicuous manner on the outside of every such wagon or truck.

(3) Every person owning a wagon or truck which passes over a railway shall determine and exhibit the normal carrying capacity for the wagon or truck in the manner specified in sub-section.

(4) Notwithstanding anything contained in sub-section (2) or sub-section (3), where a railway administration considers it necessary or expedient so to do in respect of any wagon or truck carrying any specified class of goods or any class of wagons or trucks of any specified type, it may vary the normal carrying capacity for such wagon or truck or such class of wagons or trucks and subject to such conditions as it may think fit to impose, determine for the wagon or truck or class of wagons or trucks such carrying capacity as may be specified in the notification and it shall not be necessary to exhibit the words and figures representing the carrying capacity so determined on the outside of such wagon or truck or such class of wagons or trucks.

Comment

Section 72 empowers the Central Government to fix the maximum carrying capacity of a wagon or truck.

73. Punitive charge for over-loading a wagon.- Where a person loads goods in a wagon beyond its permissible carrying capacity as exhibited under sub-section (2) or sub-section (3), or notified under sub-section (4) of Sec. 72 a railway administration may, in addition to the freight and other charges, recover from the consignor, the consignee or the endorsee, as the case may be, charges by way of penalty at such rates, as may be prescribed, before the delivery of the goods:

Provided that it shall be lawful for the railway administration to unload the goods loaded beyond the capacity of the wagon, if detected at the